

|                                                                                                                                                                                                                                                                                                                             |  |                                                                                                                         |  |                                                                                                                                         |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  |                                                          |  |                  |  |            |  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|-------------------------------------------------------------------------------------------------------------------------|--|-----------------------------------------------------------------------------------------------------------------------------------------|--|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|----------------------------------------------------------|--|------------------|--|------------|--|
| NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.                                                                                                                                                                                                                                                                    |  |                                                                                                                         |  | 1. REQUISITION NUMBER                                                                                                                   |  | PAGE 1 OF 38                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                          |  |                  |  |            |  |
| 2. CONTRACT NUMBER                                                                                                                                                                                                                                                                                                          |  | 3. AWARD/EFFECTIVE DATE                                                                                                 |  | 4. ORDER NUMBER                                                                                                                         |  | 5. SOLICITATION NUMBER<br>N3225326Q0008                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  | 6. SOLICITATION ISSUE DATE<br>08 Apr 2026                |  |                  |  |            |  |
| 7. FOR SOLICITATION INFORMATION CALL:                                                                                                                                                                                                      |  | a. NAME<br>Reid Saito                                                                                                   |  |                                                                                                                                         |  | b. TELEPHONE NUMBER (No collect calls)<br>8084738000                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  | 8. OFFER DUE DATE/ LOCAL TIME<br>13 Apr 2026<br>01:00 PM |  |                  |  |            |  |
| 9. ISSUED BY<br>PEARL HARBOR NAVAL SHIPYARD IMF<br>667 SAFEGUARD ST SUITE 100, PEARL HARBOR HI 96860-5033<br>PEARL HARBOR, HI 96860-5033<br>UNITED STATES<br>Reid Saito, Email: reid.y.saito.civ@us.navy.mil Telephone: 8084738000                                                                                          |  |                                                                                                                         |  | CODE<br>N32253                                                                                                                          |  | 10. THIS ACQUISITION IS<br><input checked="" type="checkbox"/> SMALL BUSINESS<br><input type="checkbox"/> HUBZONE SMALL BUSINESS<br><input type="checkbox"/> SERVICE-DISABLED<br><input type="checkbox"/> VETERAN-OWNED SMALL BUSINESS (SDVOSB)<br><input type="checkbox"/> UNRESTRICTED OR<br><input checked="" type="checkbox"/> SET ASIDE: 100 % FOR:<br><input type="checkbox"/> WOMEN-OWNED SMALL BUSINESS (WOSB)<br><input type="checkbox"/> ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)<br><input type="checkbox"/> 8(A)<br>NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 532490<br>SIZE STANDARD: USD 40,000,000.00 |  |                                                          |  |                  |  |            |  |
| 11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED<br><input type="checkbox"/> SEE SCHEDULE                                                                                                                                                                                                            |  | 12. DISCOUNT TERMS                                                                                                      |  | 13a. THIS CONTRACT IS A<br><input type="checkbox"/> RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) |  | 13b. RATING<br>14. METHOD OF SOLICITATION<br><input checked="" type="checkbox"/> REQUEST FOR QUOTE (RFQ)<br><input type="checkbox"/> INVITATION FOR BID (IFB)<br><input type="checkbox"/> REQUEST FOR PROPOSAL (RFP)                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |                                                          |  |                  |  |            |  |
| 15. DELIVER TO<br>See Continuation                                                                                                                                                                                                                                                                                          |  |                                                                                                                         |  | CODE                                                                                                                                    |  | 16. ADMINISTERED BY<br>CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                                          |  |                  |  |            |  |
| 17a. CONTRACTOR/ OFFEROR<br>CODE                                                                                                                                                                                                                                                                                            |  | FACILITY CODE                                                                                                           |  | 18a. PAYMENT WILL BE MADE BY<br>CODE                                                                                                    |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  |                                                          |  |                  |  |            |  |
| TELEPHONE NUMBER                                                                                                                                                                                                                                                                                                            |  |                                                                                                                         |  | 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED <input type="checkbox"/> SEE ADDENDUM                  |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  |                                                          |  |                  |  |            |  |
| 19. ITEM NUMBER                                                                                                                                                                                                                                                                                                             |  | 20. SCHEDULE OF SUPPLIES/SERVICES<br>See Continuation<br><br>(Use Reverse and/or Attach Additional Sheets as Necessary) |  |                                                                                                                                         |  | 21. QUANTITY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 22. UNIT                                                 |  | 23. UNIT PRICE   |  | 24. AMOUNT |  |
| 25. ACCOUNTING AND APPROPRIATION DATA<br>See Continuation                                                                                                                                                                                                                                                                   |  |                                                                                                                         |  |                                                                                                                                         |  | 26. TOTAL AWARD AMOUNT (For Government Use Only)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  |                                                          |  |                  |  |            |  |
| <input checked="" type="checkbox"/> 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA<br><input type="checkbox"/> 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA |  |                                                                                                                         |  |                                                                                                                                         |  | <input checked="" type="checkbox"/> ARE <input type="checkbox"/> ARE NOT ATTACHED<br><input type="checkbox"/> ARE <input type="checkbox"/> ARE NOT ATTACHED                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                                          |  |                  |  |            |  |
| <input type="checkbox"/> 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED                                        |  |                                                                                                                         |  |                                                                                                                                         |  | <input type="checkbox"/> 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: See Continuat                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |                                                          |  |                  |  |            |  |
| 30a. SIGNATURE OF OFFEROR/CONTRACTOR                                                                                                                                                                                                                                                                                        |  |                                                                                                                         |  |                                                                                                                                         |  | 31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  |                                                          |  |                  |  |            |  |
| 30b. NAME AND TITLE OF SIGNER (Type or print)                                                                                                                                                                                                                                                                               |  |                                                                                                                         |  | 30c. DATE SIGNED                                                                                                                        |  | 31b. NAME OF CONTRACTING OFFICER (Type or print)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  |                                                          |  | 31c. DATE SIGNED |  |            |  |

## **Solicitation/Contract Form Continuation**

Forklift Rental

OPSEC Plan Not Required - Contractors shall meet the requirements of all solicitation and award attachments.

## Continuation of Supplies or Services and Prices/Costs

### Additional Information/Notes

| Item                     | Supplies/Service                                                                                                                                                                                                                                                                                                                                                        | Quantity | Unit   | Unit Price | Amount |
|--------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|--------|------------|--------|
| 0001                     | <p>One (1) forklift (6000 lbs.) with pneumatic tires and diesel or propane fuel to assist in operations within the PHNSY &amp; IMF in accordance with the Performance Work Statement (PWS).</p> <p>Anticipated Period of Performance 20 APR 2026 to 19 APR 2027.</p> <p>10 U.S.C. 3133 Authority is hereby invoked.</p> <p>Pricing Arrangement: Firm Fixed Price</p>    | 12       | Months |            |        |
| 0002                     | <p>One (1) forklift (14000 lbs.) with pneumatic tires and diesel or propane fuel to assist in operations within the PHNSY &amp; IMF in accordance with the Performance Work Statement (PWS).</p> <p>Anticipated Period of Performance 20 APR 2026 to 19 APR 2027.</p> <p>10 U.S.C. 3133 Authority is hereby invoked.</p> <p>Pricing Arrangement: Firm Fixed Price</p>   | 12       | Months |            |        |
| 0003                     | <p>Three (3) forklifts (6000 lbs.) with pneumatic tires and diesel or propane fuel to assist in operations within the PHNSY &amp; IMF in accordance with the Performance Work Statement (PWS).</p> <p>Anticipated Period of Performance 20 JUL 2026 to 19 APR 2027.</p> <p>10 U.S.C. 3133 Authority is hereby invoked.</p> <p>Pricing Arrangement: Firm Fixed Price</p> | 9        | Months |            |        |
| 0004                     | <p>One (1) forklift (14000 lbs.) with pneumatic tires and diesel or propane fuel to assist in operations within the PHNSY &amp; IMF in accordance with the Performance Work Statement (PWS).</p> <p>Anticipated Period of Performance 20 JUL 2026 to 19 APR 2027.</p> <p>10 U.S.C. 3133 Authority is hereby invoked.</p> <p>Pricing Arrangement: Firm Fixed Price</p>   | 9        | Months |            |        |
| Option Line Item<br>1001 | <p>Four (4) forklifts (6000 lbs.) with pneumatic tires and diesel or propane fuel to assist in operations within the PHNSY &amp; IMF in accordance with the Performance Work Statement (PWS).</p> <p>Anticipated Period of Performance 20 APR 2027 to 19</p>                                                                                                            | 6        | Months |            |        |

|                          |                                                                                                                                                                                                                                                                                                                                                  |   |        |  |  |
|--------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---|--------|--|--|
|                          | <p>OCT 2027.</p> <p>Pursuant to 52.217-8.</p> <p>Pricing Arrangement: Firm Fixed Price</p>                                                                                                                                                                                                                                                       |   |        |  |  |
| Option Line Item<br>1002 | <p>Two (2) forklifts (14000 lbs.) with pneumatic tires and diesel or propane fuel to assist in operations within the PHNSY &amp; IMF in accordance with the Performance Work Statement (PWS).</p> <p>Anticipated Period of Performance 20 APR 2027 to 19 OCT 2027.</p> <p>Pursuant to 52.217-8.</p> <p>Pricing Arrangement: Firm Fixed Price</p> | 6 | Months |  |  |

## Continuation of Description

### Requirements

FORKLIFT RENTAL

## Continuation of Packaging and Marking

## Continuation of Inspection and Acceptance

### Overall Contract Inspection/Acceptance Locations

|      |                                                                                                                                                                                                                                                                                                                                                                                                                 |
|------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: IAWPWS</p> <p>DoDAAC: N32253<br/>CountryCode: USA</p> <p>PEARL HARBOR NAVAL SHIPYARD IMF<br/>667 SAFEGUARD ST SUITE 100, PEARL HARBOR HI 96860-5033<br/>PEARL HARBOR, HI 96860-5033<br/>UNITED STATES</p> <p>Refer to G-242-H001, Refer to G-242-H001<br/>Email: Refer to G-242-H001<br/>Telephone: Refer to G-242-H001</p> |
| 0002 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: IAWPWS</p> <p>DoDAAC: N32253<br/>CountryCode: USA</p> <p>PEARL HARBOR NAVAL SHIPYARD IMF<br/>667 SAFEGUARD ST SUITE 100, PEARL HARBOR HI 96860-5033<br/>PEARL HARBOR, HI 96860-5033<br/>UNITED STATES</p> <p>Refer to G-242-H001, Refer to G-242-H001<br/>Email: Refer to G-242-H001<br/>Telephone: Refer to G-242-H001</p> |
| 0003 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: IAWPWS</p> <p>DoDAAC: N32253<br/>CountryCode: USA</p> <p>PEARL HARBOR NAVAL SHIPYARD IMF<br/>667 SAFEGUARD ST SUITE 100, PEARL HARBOR HI 96860-5033<br/>PEARL HARBOR, HI 96860-5033<br/>UNITED STATES</p> <p>Refer to G-242-H001, Refer to G-242-H001<br/>Email: Refer to G-242-H001<br/>Telephone: Refer to G-242-H001</p> |
| 0004 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: IAWPWS</p>                                                                                                                                                                                                                                                                                                                  |

|                          |                                                                                                                                                                                                                                                                                                                                                                                                                 |
|--------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                          | <p>DoDAAC: N32253<br/>CountryCode: USA</p> <p>PEARL HARBOR NAVAL SHIPYARD IMF<br/>667 SAFEGUARD ST SUITE 100, PEARL HARBOR HI 96860-5033<br/>PEARL HARBOR, HI 96860-5033<br/>UNITED STATES</p> <p>Refer to G-242-H001, Refer to G-242-H001<br/>Email: Refer to G-242-H001<br/>Telephone: Refer to G-242-H001</p>                                                                                                |
| Option Line Item<br>1001 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: IAWPWS</p> <p>DoDAAC: N32253<br/>CountryCode: USA</p> <p>PEARL HARBOR NAVAL SHIPYARD IMF<br/>667 SAFEGUARD ST SUITE 100, PEARL HARBOR HI 96860-5033<br/>PEARL HARBOR, HI 96860-5033<br/>UNITED STATES</p> <p>Refer to G-242-H001, Refer to G-242-H001<br/>Email: Refer to G-242-H001<br/>Telephone: Refer to G-242-H001</p> |
| Option Line Item<br>1002 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: IAWPWS</p> <p>DoDAAC: N32253<br/>CountryCode: USA</p> <p>PEARL HARBOR NAVAL SHIPYARD IMF<br/>667 SAFEGUARD ST SUITE 100, PEARL HARBOR HI 96860-5033<br/>PEARL HARBOR, HI 96860-5033<br/>UNITED STATES</p> <p>Refer to G-242-H001, Refer to G-242-H001<br/>Email: Refer to G-242-H001<br/>Telephone: Refer to G-242-H001</p> |

## Continuation of Deliveries or Performance

Overall Contract Delivery Period

Contractor  
Destination

| Line Item | Delivery Schedule                                                 | Quantity  | Address and POC                                                                                                                                                                                                                                                                                                         |
|-----------|-------------------------------------------------------------------|-----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001      | Period of Performance<br>From<br>20 Apr 2026<br>To<br>19 Apr 2027 | 12 Months | Place of Performance<br>DoDAAC: N32253<br>CountryCode: USA<br>PEARL HARBOR NAVAL SHIPYARD IMF<br>667 SAFEGUARD ST SUITE 100, PEARL HARBOR HI 96860-5033<br>PEARL HARBOR, HI 96860-5033<br>UNITED STATES<br><br>Refer to G-242-H001, Refer to G-242-H001<br>Email: Refer to G-242-H001<br>Telephone: Refer to G-242-H001 |
| 0002      | Period of Performance<br>From<br>20 Apr 2026<br>To<br>19 Apr 2027 | 12 Months | Place of Performance<br>DoDAAC: N32253<br>CountryCode: USA<br>PEARL HARBOR NAVAL SHIPYARD IMF<br>667 SAFEGUARD ST SUITE 100, PEARL HARBOR HI 96860-5033<br>PEARL HARBOR, HI 96860-5033<br>UNITED STATES<br><br>Refer to G-242-H001, Refer to G-242-H001<br>Email: Refer to G-242-H001<br>Telephone: Refer to G-242-H001 |
| 0003      | Period of Performance<br>From<br>20 Jul 2026<br>To<br>19 Apr 2027 | 9 Months  | Place of Performance<br>DoDAAC: N32253<br>CountryCode: USA<br>PEARL HARBOR NAVAL SHIPYARD IMF<br>667 SAFEGUARD ST SUITE 100, PEARL HARBOR HI 96860-5033<br>PEARL HARBOR, HI 96860-5033<br>UNITED STATES<br><br>Refer to G-242-H001, Refer to G-242-H001<br>Email: Refer to G-242-H001<br>Telephone: Refer to G-242-H001 |



|                          |                                                                   |          |                                                                                                                                                                                                                                                                                                                         |
|--------------------------|-------------------------------------------------------------------|----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0004                     | Period of Performance<br>From<br>20 Jul 2026<br>To<br>19 Apr 2027 | 9 Months | Place of Performance<br>DoDAAC: N32253<br>CountryCode: USA<br>PEARL HARBOR NAVAL SHIPYARD IMF<br>667 SAFEGUARD ST SUITE 100, PEARL HARBOR HI 96860-5033<br>PEARL HARBOR, HI 96860-5033<br>UNITED STATES<br><br>Refer to G-242-H001, Refer to G-242-H001<br>Email: Refer to G-242-H001<br>Telephone: Refer to G-242-H001 |
| Option Line Item<br>1001 | Period of Performance<br>From<br>20 Apr 2027<br>To<br>19 Oct 2027 | 6 Months | Place of Performance<br>DoDAAC: N32253<br>CountryCode: USA<br>PEARL HARBOR NAVAL SHIPYARD IMF<br>667 SAFEGUARD ST SUITE 100, PEARL HARBOR HI 96860-5033<br>PEARL HARBOR, HI 96860-5033<br>UNITED STATES<br><br>Refer to G-242-H001, Refer to G-242-H001<br>Email: Refer to G-242-H001<br>Telephone: Refer to G-242-H001 |
| Option Line Item<br>1002 | Period of Performance<br>From<br>20 Apr 2027<br>To<br>19 Oct 2027 | 6 Months | Place of Performance<br>DoDAAC: N32253<br>CountryCode: USA<br>PEARL HARBOR NAVAL SHIPYARD IMF<br>667 SAFEGUARD ST SUITE 100, PEARL HARBOR HI 96860-5033<br>PEARL HARBOR, HI 96860-5033<br>UNITED STATES<br><br>Refer to G-242-H001, Refer to G-242-H001<br>Email: Refer to G-242-H001<br>Telephone: Refer to G-242-H001 |

## Continuation of Accounting and Appropriation Data

## Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                                                                                                  | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.                                                                                    | Jan 2017       |                      |                          |
| 52.204-13 | System for Award Management-Maintenance. (Deviation 2026-O0038)                                                                                                        | Feb 2026       |                      |                          |
| 52.219-6  | Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)                                                                                                       | Feb 2026       |                      |                          |
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving.                                                                                                   | May 2024       |                      |                          |
| 52.232-33 | Payment by Electronic Funds Transfer-System for Award Management.                                                                                                      | Oct 2018       |                      |                          |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors.                                                                                                       | Mar 2023       |                      |                          |
| 52.233-3  | Protest after Award. (Deviation 2026-O0038)                                                                                                                            | Feb 2026       |                      |                          |
| 52.233-4  | Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)                                                                                                    | Feb 2026       |                      |                          |
| 52.212-4  | Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)                                                                               | Feb 2026       |                      |                          |
| 52.209-6  | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038) | Feb 2026       |                      |                          |
| 52.222-35 | Equal Opportunity for Veterans. (Deviation 2026-O0038)                                                                                                                 | Feb 2026       |                      |                          |
| 52.222-36 | Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)                                                                                                | Feb 2026       |                      |                          |
| 52.222-37 | Employment Reports on Veterans. (Deviation 2026-O0038)                                                                                                                 | Feb 2026       |                      |                          |
| 52.222-54 | Employment Eligibility Verification. (Deviation 2026-O0038)                                                                                                            | Feb 2026       |                      |                          |
| 52.203-3  | Gratuities.                                                                                                                                                            | Apr 1984       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                                                | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|----------------------------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.203-7000 | Requirements Relating to Compensation of Former DoD Officials.                                                       | Sep 2011       |                      |                          |
| 252.203-7002 | Requirement to Inform Employees of Whistleblower Rights.                                                             | Dec 2022       |                      |                          |
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting.                                               | May 2024       |                      |                          |
| 252.204-7018 | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.                          | Jan 2023       |                      |                          |
| 252.225-7056 | Prohibition Regarding Business Operations with the Maduro Regime.                                                    | Jan 2023       |                      |                          |
| 252.232-7003 | Electronic Submission of Payment Requests and Receiving Reports.                                                     | Dec 2018       |                      |                          |
| 252.232-7010 | Levies on Contract Payments.                                                                                         | Dec 2006       |                      |                          |
| 252.247-7023 | Transportation of Supplies by Sea.                                                                                   | Oct 2024       |                      |                          |
| 252.225-7060 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.                                      | Jun 2023       |                      |                          |
| 252.204-7020 | NIST SP 800-171 DoD Assessment Requirements.                                                                         | Nov 2023       |                      |                          |
| 252.223-7008 | Prohibition of Hexavalent Chromium.                                                                                  | Jan 2023       |                      |                          |
| 252.219-7000 | Advancing Small Business Growth.                                                                                     | Jun 2023       |                      |                          |
| 252.204-7022 | Expediting Contract Closeout.                                                                                        | May 2021       |                      |                          |
| 252.205-7000 | Provision of Information to Cooperative Agreement Holders.                                                           | Oct 2024       |                      |                          |
| 252.216-7010 | Postaward Debriefings for Task Orders and Delivery Orders.                                                           | Oct 2025       |                      |                          |
| 252.219-7003 | Small Business Subcontracting Plan (DoD Contracts).                                                                  | Dec 2019       |                      |                          |
| 252.225-7052 | Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.                                           | May 2024       |                      |                          |
| 252.226-7001 | Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns. | Jan 2023       |                      |                          |
| 252.227-7015 | Technical Data-Commercial Products and Commercial Services.                                                          | Jan 2025       |                      |                          |
| 252.227-7037 | Validation of Asserted Restrictions on Technical Data.                                                               | Jan 2025       |                      |                          |
| 252.243-7002 | Requests for Equitable Adjustment.                                                                                   | Dec 2022       |                      |                          |
| 252.244-7000 | Subcontracts for Commercial Products or Commercial Services.                                                         | Nov 2023       |                      |                          |

### FAR Clauses Incorporated by Full Text

**52.219-28 Postaward Small Business Program Rerepresentation. (Deviation 2026-O0038) (Feb 2026)**

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this clause-

*Long-term contract* means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

*Small business concern-*

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under \_\_\_\_ NAICS Code assigned to \_\_\_\_ contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [\_\_\_\_The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [\_\_\_\_The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [\_\_\_\_The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(6) *HUBZone joint venture eligible under the HUBZone Program.*[ *Complete only if the offeror is a HUBZone small business concern.* ] The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [\_\_\_\_\_]The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [\_\_\_\_\_]Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

## DFARS Clauses Incorporated by Full Text

### 252.204-7021 **Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements.** (Nov 2025)

#### CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

- (1) Final Level 1 (Self).
- (2) Conditional Level 2 (Self).
- (3) Final Level 2 (Self).
- (4) Conditional Level 2 (C3PAO).
- (5) Final Level 2 (C3PAO).
- (6) Conditional Level 3 (DIBCAC).
- (7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: CMMC Level 1 (Self) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

## 252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

### WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

N/A

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

### Invoice 2in1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) ) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| <i>Field Name in WAWF</i> | <i>Data to be entered in WAWF</i> |
|---------------------------|-----------------------------------|
| Pay Official DoDAAC       | <u>N50082</u>                     |
| Issue By DoDAAC           | <u>N32253</u>                     |
| Admin DoDAAC              | <u>N32253</u>                     |
| Inspect By DoDAAC         | <u>N32253</u>                     |
| Ship To Code              | <u>N32253</u>                     |
| Ship From Code            | <u>N/A</u>                        |
| Mark For Code             | <u>N/A</u>                        |
| Service Approver (DoDAAC) | <u>N32253</u>                     |
| Service Acceptor (DoDAAC) | <u>N32253</u>                     |
| Accept at Other DoDAAC    | <u>N/A</u>                        |
| LPO DoDAAC                | <u>N32253</u>                     |
|                           |                                   |



|                     |               |
|---------------------|---------------|
| DCAA Auditor DoDAAC | <u>N/A</u>    |
| Other DoDAAC(s)     | <u>056521</u> |

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

prlh\_phns\_c610.4\_contracts@us.navy.mil

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

## 252.211-7003 Item Unique Identification and Valuation.

(Jan 2023)

### ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at [http://www.aimglobal.org/?Reg\\_Authority15459](http://www.aimglobal.org/?Reg_Authority15459).

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number

Item Description

|       |       |
|-------|-------|
| ===== | ===== |
| ===== | ===== |
| ===== | ===== |

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number

Item Description

|       |       |
|-------|-------|
| ===== | ===== |
|-------|-------|

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*(If items are identified in the Schedule, insert "See Schedule in this table.)*

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed repairables and DoD serially managed nonrepairables as specified in Attachment Number \_\_\_\_.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number \_\_\_\_.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.\*\*
- (4) Issuing agency code (if concatenated unique item identifier is used).\*\*
- (5) Enterprise identifier (if concatenated unique item identifier is used).\*\*
- (6) Original part number (if there is serialization within the original part number).\*\*
- (7) Lot or batch number (if there is serialization within the lot or batch number).\*\*
- (8) Current part number (optional and only if not the same as the original part number).\*\*
- (9) Current part number effective date (optional and only if current part number is used).\*\*
- (10) Serial number (if concatenated unique item identifier is used).\*\*
- (11) Description.

\*\* Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/iuidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) \_\_\_\_\_, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts*. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

# Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

## Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

### Addendum to Contract Clauses

#### Contract Clauses

##### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                  | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|----------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.209-10 | Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038) | Feb 2026       |                      |                          |
| 52.223-5  | Pollution Prevention and Right-to-Know Information.                                    | May 2024       |                      |                          |
| 52.240-91 | Security Prohibitions and Exclusions. (Deviation 2026-O0038)                           | Feb 2026       |                      |                          |
| 52.244-6  | Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)   | Feb 2026       |                      |                          |
| 52.222-3  | Convict Labor. (Deviation 2026-O0038)                                                  | Feb 2026       |                      |                          |
| 52.232-39 | Unenforceability of Unauthorized Obligations.                                          | Jun 2013       |                      |                          |
| 52.223-23 | Sustainable Products and Services. (DEVIATION 2025-O0004)                              | Feb 2026       | Deviation 2025-O0004 | Mar 2025                 |

##### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                 | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|-----------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.201-7000 | Contracting Officer's Representative.                                 | Dec 1991       |                      |                          |
| 252.237-7010 | Prohibition on Interrogation of Detainees by Contractor Personnel.    | Jan 2023       |                      |                          |
| 252.204-7003 | Control of Government Personnel Work Product.                         | Apr 1992       |                      |                          |
| 252.225-7048 | Export-Controlled Items.                                              | Jun 2013       |                      |                          |
| 252.204-7023 | Reporting Requirements for Contracted Services.                       | Jul 2021       |                      |                          |
| 252.211-7008 | Use of Government-Assigned Serial Numbers.                            | Sep 2010       |                      |                          |
| 252.225-7001 | Buy American and Balance of Payments Program.                         | Feb 2024       |                      |                          |
| 252.225-7012 | Preference for Certain Domestic Commodities.                          | Apr 2022       |                      |                          |
| 252.225-7021 | Trade Agreements.                                                     | Feb 2024       |                      |                          |
| 252.225-7036 | Buy American-Free Trade Agreements--Balance of Payments Program.      | Feb 2024       |                      |                          |
| 252.247-7028 | Application for U.S. Government Shipping Documentation/ Instructions. | Jun 2012       |                      |                          |

##### FAR Clauses Incorporated by Full Text

##### 52.252-6 Authorized Deviations in Clauses. (Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

##### 52.217-8 Option to Extend Services. (Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 15 days.

(End of clause)

**Additional Regulation or Supplemental Clauses Incorporated by Full Text**

**G-242-H001    GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND    (Oct 2023)**  
**RESPONSIBILITIES (NAVSEA) (OCT 2023)**

- (a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.
- (b) The contracting officer is the only person authorized to change this contract or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.

(c) The points of contact are as follows:

(i) The Procuring Contracting Officer (PCO) is:

Name: Lyndon Paloma  
Address: PHNSY & IMF, C414 667 Safeguard St. Ste. 100  
JBPHH, HI 96860-5033  
Phone: (808) 473-8000 x 6836  
E-mail: lyndon.g.paloma.civ@us.navy.mil

(ii) The Contract Specialist is:

Name: Reid Y. Saito  
Address: PHNSY & IMF, C414 667 Safeguard St. Ste. 100  
JBPHH, HI 96860-5033  
Phone: (808) 473-8000 x 5813  
E-mail: reid.y.saito.civ@us.navy.mil

(iii) The Administrative Contracting Officer (ACO) is:

Name: [ \* ]  
Address:  
[ \*Street ]  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

(d) The Contracting Officer's Representative (COR) is the contracting officer's appointed representative for technical matters. The COR is not a contracting officer and does not have the authority to direct the accomplishment of effort which is beyond the scope of the contract or to otherwise change any contract requirements. An informational copy of the COR appointment letter, which provides a delineation of COR authority and responsibilities, will be provided upon award of this contract.

The Contracting Officer's Representative (COR) is:

Name: [ \* ]  
Address:  
[ \*Street ]  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

(e) The Alternate Contracting Officer's Representative (ACOR) is responsible for COR responsibilities and functions in the event that the COR is unavailable due to leave, illness, or other official business. The ACOR is appointed by the contracting officer; a copy of the ACOR appointment will be provided upon award of this contract.

The Alternate Contracting Officer's Representative (ACOR) is:

Name: [ \* ]  
Address:  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

(f) The Technical Point of Contact (TPOC) is the contracting officer's representative for technical matters when a COR is not appointed. The TPOC is responsible for technical issues of contract administration, such as providing all items of Government Furnished Information (GFI), Government Furnished Material (GFM) and Government Furnished Equipment (GFE) if specified in the contract as well as the inspection and acceptance of all contract deliverables.

The Technical Point of Contact (TPOC) is:

Name: [ \* ]  
Address: [ \*Street ]  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

(g) The Alternate Technical Point of Contact (ATPOC) is responsible for TPOC responsibilities and functions in the event that the TPOC is unavailable due to leave, illness, or other official business.

The Alternate Technical Point of Contact (ATPOC) is:

Name: [ \* ]  
Address:  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

(h) The Authorized Ordering Person(s) for Per-Call Maintenance is responsible for issuing and maintaining records for any per-call orders for remedial maintenance placed under this contract. No per-call order shall be placed outside the scope of this contract and the cumulative total of all orders shall not be in excess of any not-to-exceed amount specified in the contract. Per-call orders shall not, in any way, modify any terms and conditions of the contract.

(i) The Authorized Ordering Person(s) for Per-Call Maintenance is:

Name: [ \* ]  
Address:  
[ \*Street ]  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx];  
E-mail: [ \* ]

(j) The Contractor's point of contact for performance under this contract is:

Name: [ \* ]  
Address:  
[ \*Street ]  
[ \*City, State, Zip ]  
Phone: (Area Code) xxx- [xxxx]  
E-mail: [ \* ]

[ \* ] To be completed at contract award

**(End of Text)**



## List of Contract Documents, Exhibits, or Attachments

### Attachments:

| Number | Attachment Name                                   | Attachment Description     | Reference Identifier | Date        |
|--------|---------------------------------------------------|----------------------------|----------------------|-------------|
| 01     | PERFORMANCE WORK STATEMENT                        | Performance Work Statement |                      | 02 Apr 2026 |
| 02     | APPENDIX I - SAFETY AND HEALTH                    | Performance Work Statement |                      | 01 Jul 2024 |
| 03     | APPENDIX II - ENVIRONMENTAL PROTECTION GUIDELINES | Performance Work Statement |                      | 16 Oct 2019 |
| 04     | APPENDIX III - CONTRACTOR SECURITY REQUIREMENTS   | Performance Work Statement |                      | 01 Feb 2026 |
| 05     | OPSEC CONTRACT REQUIREMENTS                       | Performance Work Statement |                      | 02 Apr 2026 |

## Solicitation Provisions

### FAR Clauses Incorporated by Reference

| Number   | Title                                                                                        | Effective Date | Alternate/ Deviation | Variation Effective Date |
|----------|----------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.212-1 | Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-00038) | Feb 2026       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                                   | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|---------------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.203-7005 | Representation Relating to Compensation of Former DoD Officials.                                        | Sep 2022       |                      |                          |
| 252.204-7008 | Compliance with Safeguarding Covered Defense Information Controls.                                      | Oct 2016       |                      |                          |
| 252.204-7024 | Notice on the Use of the Supplier Performance Risk System.                                              | Mar 2023       |                      |                          |
| 252.225-7055 | Representation Regarding Business Operations with the Maduro Regime.                                    | May 2022       |                      |                          |
| 252.225-7059 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.          | Jun 2023       |                      |                          |
| 252.204-7019 | Notice of NIST SP 800-171 DoD Assessment Requirements.                                                  | Nov 2023       |                      |                          |
| 252.215-7016 | Notification to Offerors-Postaward Debriefings.                                                         | Oct 2025       |                      |                          |
| 252.225-7050 | Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. | Dec 2022       |                      |                          |

### DFARS Clauses Incorporated by Full Text

#### 252.204-7017 **Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.** (May 2021)

##### PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

**252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation.**

**(Dec 2019)**

**COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)**

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

## Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

All offerors are required to submit and comply with the following:

1. All firms or individuals responding must be registered with the System for Award Management (SAM) (<https://www.sam.gov>) by the award date.
2. On page 1 of the solicitation document (Standard Form 1449), fill out box 17a. to include Contractor name, address, telephone number, and CAGE Code. Complete, sign, and date box 30a-c (to be completed and signed by an authorized representative/official).
3. On pages 3-4 of the solicitation document, fill out the unit prices and total amounts for all CLIN's 0001, 0002, 0003, 0004, 1001 and 1002.
4. The proposal and/or response shall include:
  - a. An itemized price quote that clearly and concisely describes and defines the contractor's response to the requirements contained in the RFQ. Provide an itemize price breakdown of the quote (monthly price per unit/model, delivery and pickup charge, if any.). The price breakdown will be used to determine price reasonableness. The Government reserves the right to reject any quotation that is determined to be unreasonable in price or otherwise not in the best interest of the Government;
  - b. Technical Approach: Please submit a technical proposal (not to exceed 10 pages) that clearly demonstrates thorough knowledge and understanding of, and approach to, accomplishing each paragraph listed in the PWS and solicitation requirements. The proposal must contain sufficient details so that it may be evaluated in accordance with the PWS and comply with the period of performance set forth in the solicitation. Nonconformance will deem an Offeror ineligible. As part of the technical proposal submit the following documents:
    - i) forklift specifications or brochure,
    - ii) if using subcontractor provide a subcontracting plan and a signed commitment letter form the subcontractor.
    - iii) Certification that the forklift can be delivered on or before POP start date;
  - c. Relevant Past Performance: List of contracts for work that is similar or same to the work required.
5. The resulting contract award requires a CMMC Level 1 self-certification for handling Federal Contract Information (FCI). Therefore, this solicitation includes DFARS provision 252.204-7025. Offerors must possess a valid CMMC Level 1 (Self-Assessment) certification at the time of offer submission and for the duration of any resulting contract. Government will verify Offeror's CMMC Level 1 (Self-Assessment) certification at the time of offer submission. Offerors failing to meet this requirement at the time of offer submission will be considered ineligible for award and their offers will not be evaluated.
6. Offer Delivery - Offerors shall deliver their Offer via email only to the Government Points of Contact (POC's) [reid.y.saito.civ@us.navy.mil](mailto:reid.y.saito.civ@us.navy.mil) and [lyndon.g.paloma.civ@us.navy.mil](mailto:lyndon.g.paloma.civ@us.navy.mil). No other means of delivery will be accepted. Offerors are hereby advised that the size limit including attachments is 35 MB per email. Emails that exceed this size limit will not be received by the Government. It is the Offeror's sole responsibility to ensure their Offer is received by the Government POCs no later than the specified closing date and time. When necessary to comply with this size limit, the Offeror may deliver their Offer through multiple emails, with each email clearly marked in the Subject line indicating its sequence order within the total number of emails being transmitted (for example, email 1 of 3). Offers received after the due date may not be considered unless the Contracting Officer determines that the delay was caused solely by the Government and accepting the Offer is in the best interest of the Government.



## Evaluation - Commercial Products and Commercial Services

### FAR Clauses Incorporated by Full Text

#### 52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038) (Feb 2026)

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

See Addendum to 52.212-2

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

# Addendum to Evaluation - Commercial Product and Commercial Services

## 1. EVALUATION OF AWARD

### Basis for Contract Award

This evaluation is conducted in accordance with (IAW) the Revolutionary Federal Acquisition Regulation Overhaul (RFO) 12.201, Simplified Acquisition Procedures, as supplemented by the Defense Federal Acquisition Regulation Supplement (DFARS) and the Navy Marine Corps Acquisition Regulation Supplement (NMCARS). These regulations are available electronically at the Federal Acquisition Regulation website, <https://www.acquisition.gov/>. A contract may be awarded to the contractor who is deemed responsible IAW RFO 9.1, whose technical approach is deemed acceptable IAW the solicitation, and whose price is determined fair and reasonable. Award will be made to the lowest price among the technically acceptable offers that have acceptable past performance ratings.

Factor 1 - Technical Capability. Technical capability will be evaluated by Table 1 - Technical Ratings table below. If the offeror is deemed Unacceptable, then the past performance factor and price factor will not be evaluated.

TABLE 1 - TECHNICAL RATINGS

| Rating       | Description                                                                                                                                                                                                                                                                                                                                                                                                      |
|--------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Acceptable   | Quote meets the requirements of the solicitation and clearly demonstrates thorough knowledge and understanding of, and approach to, accomplishing the PWS. Equipment listed in the quote fully meets or exceeds all required specifications listed in the solicitation, available for the full rental period as specified, and offeror confirms timely delivery and setup by start of the Period of Performance. |
| Unacceptable | Technical capability does NOT clearly demonstrate thorough knowledge and understanding of, and approach to, accomplishing the PWS. Equipment listed in the quote DOES NOT meet one or more required specifications listed in the solicitation, NOT available for the full rental period as specified, and offeror DOES NOT confirm timely delivery and setup by start of the Period of Performance.              |

Factor 2 - Past Performance. Past performance will be evaluated by Table 2 - Past Performance Table below. If the offeror is deemed Unacceptable, then the price factor will not be evaluated.

TABLE 2 - PAST PERFORMANCE

| Rating     | Description                                                                                                                                                                       |
|------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Acceptable | The offeror has a history of relevant past performance deemed or found to be satisfactory or better by the Government, OR the offeror has no record of relevant past performance. |

|              |                                                                                                                                         |
|--------------|-----------------------------------------------------------------------------------------------------------------------------------------|
| Unacceptable | The offeror has a documented history of relevant past performance that has been deemed or found to be unsatisfactory by the Government. |
|--------------|-----------------------------------------------------------------------------------------------------------------------------------------|

Factor 3 - Price. Those offerors with "Acceptable" ratings in both Technical Capability and Past Performance will then be evaluated for Factor 3, price. The total evaluated price will be evaluated for price reasonableness. The Government will evaluate price for reasonableness based on commercial marketplace information, historical pricing, independent Government estimates, and other price analysis techniques permitted under RFO Part 12. Based on all quotations received, the lowest priced technically acceptable offeror with an acceptable past performance that is determined to be capable will be selected.

a. Solicitation Requirements, Terms and Conditions

As required by DFARS 252.204-7024, the potential awardee's Supplier Risk Report from the Suppliers Performance Risk System (SPRS) will be generated and considered as part of the responsibility determination. If required, additional clauses and other risk mitigation requirements will be added to the resultant contract.

b. Responsibility Determination

Contractors are required to meet all solicitation requirements, such as terms and conditions, representations and certifications, and technical requirements, in addition to those identified as factors. Failure to comply with the terms and conditions of the solicitation may result in the contractor being ineligible for award. Contractors must clearly identify any exception to the solicitation terms and conditions and must provide complete supporting rationale. The Government reserves the right to determine any such exceptions unacceptable.

a. Solicitation Requirements, Terms and Conditions



# Offeror Representations and Certifications - Commercial Products and Commercial Services

## Addendum to Solicitation Provisions

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                                                           | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|---------------------------------------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.203-18 | Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. | Jan 2017       |                      |                          |
| 52.204-7  | System for Award Management-Registration. (Deviation 2026-O0038)                                                                | Feb 2026       |                      |                          |
| 52.222-50 | Combating Trafficking in Persons. (Deviation 2026-O0038)                                                                        | Feb 2026       |                      |                          |
| 52.240-90 | Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)                                 | Feb 2026       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                               | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|-----------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.215-7010 | Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. | May 2024       |                      |                          |
| 252.225-7031 | Secondary Arab Boycott of Israel .                                                                  | Jun 2005       |                      |                          |

### FAR Clauses Incorporated by Full Text

**52.252-5 Authorized Deviations in Provisions. (Nov 2020)**

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

### DFARS Clauses Incorporated by Full Text

**252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements. (Nov 2025)**

#### NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: CMMC Level 1 (Self). This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

## **252.209-7012 Prohibition Relating to Conflicts of Interest in Consulting Services-Certification.**

**(Oct 2025)**

### **PROHIBITION RELATING TO CONFLICTS OF INTEREST IN CONSULTING SERVICES-CERTIFICATION (OCT 2025)**

(a) *Definitions.* As used in this provision-

"Consulting services" means advisory and assistance services, except that "consulting services" does not include the provision of products or services related to-

- (1) Compliance with legal, audit, accounting, tax, reporting, or other requirements of the laws and standards of countries; or
- (2) Participation in a judicial, legal, or equitable dispute resolution proceeding.

"Contract oversight entity" means any of the following:

- (1) The Contracting Officer.
- (2) The Contracting Officer's Representative.
- (3) The Defense Contract Management Agency.
- (4) The Defense Contract Audit Agency.
- (5) The DoD Office of Inspector General or any subcomponent of that office.
- (6) The Government Accountability Office.

"Covered contract" means a DoD contract involving consulting services.

"Covered foreign entity" means any of the following:

(1) The government of the People's Republic of China, the Chinese Communist Party, the People's Liberation Army, the Ministry of State Security, or other security service or intelligence agency of the People's Republic of China.

(2) The government of the Russian Federation or any entity sanctioned by the Secretary of the Treasury under Executive Order 13662, Blocking Property of Additional Persons Contributing to the Situation in Ukraine.

(3) The government of any country, if the Secretary of State determines that such government has repeatedly provided support for acts of international terrorism, pursuant to any of the following:

- (i) Section 1754(c)(1)(A) of the Export Control Reform Act of 2018 (50 U.S.C. 4318(c)(1)(A)).
- (ii) Section 620A of the Foreign Assistance Act of 1961 (22 U.S.C. 2371).
- (iii) Section 40 of the Arms Export Control Act (22 U.S.C. 2780).
- (iv) Any other provision of law.

(4) Any entity included on any of the following lists maintained by the Department of Commerce (see the Export Administration Regulations at 15 CFR subchapter C):

- (i) The Entity List in supplement no. 4 to 15 CFR part 744.
- (ii) The Denied Persons List as described in 15 CFR 764.3(a)(2).
- (iii) The Unverified List in supplement no. 6 to 15 CFR part 744.
- (iv) The Military End User List in supplement no. 7 to 15 CFR part 744.

(5) Any entity identified by the Secretary of Defense pursuant to section 1237(b) of the National Defense Authorization Act for Fiscal Year 1999 (Pub. L. 105-261; 50 U.S.C. 1701 note).

(6) Any entity on the Non-Specially Designated Nationals Chinese Military-Industrial Complex Companies List maintained by the Office of Foreign Assets Control of the Department of the Treasury under Executive Order 14032, Addressing the Threat From Securities Investments That Finance Certain Companies of the People's Republic of China.

(b) *Prohibition.* DoD cannot award to the Offeror a contract assigned a North American Industry Classification System code beginning with 5416 if the Offeror-

(1) Cannot certify that neither the Offeror nor any of its subsidiaries or affiliates hold a contract or subcontract that involves consulting services with one or more covered foreign entities; and

(2) Does not maintain a conflict-of-interest mitigation plan as described in paragraph (d) of this provision.

(c) *Certification.* The Offeror certifies that-

(1)(i) It does ☐ does not ☐ hold a contract or subcontract that involves consulting services with one or more covered foreign entities; and

(ii) Its subsidiaries or affiliates do ☐ do not ☐ hold a contract or subcontract that involves consulting services with one or more covered foreign entities; and

(2) It does ☐ does not ☐ maintain a conflict-of-interest mitigation plan described in paragraph (d) of this provision.

(d) *Conflict-of-interest mitigation plan.* If the Offeror answered in the affirmative in paragraphs (c)(1) and (2) of this provision, then the Offeror shall submit its conflict-of-interest mitigation plan to the Contracting Officer for approval. The Offeror may contact the Contracting Officer for guidance on submitting the Offeror's conflict-of-interest mitigation plan.

(1) The Offeror's conflict-of-interest mitigation plan shall be auditable by a contract oversight entity and shall include-

(i) An identification, unless otherwise prohibited by law or regulation, of any covered contracts of the Offeror or its subsidiaries or affiliates with a covered foreign entity. If the Offeror is unable to identify one or more covered foreign entities due to confidentiality obligations, the Offeror shall identify such entities as a covered foreign entity;

(ii) A written analysis, including a course of action for avoiding, neutralizing, or mitigating the actual or potential conflict of interest of such a covered contract;

(iii) A description of the procedures by which the Offeror or its subsidiaries or affiliates will ensure that individuals who will perform the scope of a covered contract will not, for the duration of such contract, also provide any consulting services to any covered foreign entity; and

(iv) A description of the procedures by which the Offeror or its subsidiaries or affiliates will submit to the contract oversight entities a notice of an unmitigated conflict of interest with respect to a covered contract within 15 days of determining that such a conflict has arisen.

(2) The Contracting Officer will incorporate the Offeror's approved conflict-of-interest mitigation plan into any contract awarded to the Offeror resulting from this solicitation.

(End of provision)

**252.225-7000 Buy American--Balance of Payments Program Certificate.**

**(Feb 2024)**

**BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)**

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Basic clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products without regard to the restrictions of the Buy American statute or the Balance of Payments Program.

(c) *Certifications and identification of country of origin.*

(1) For all line items subject to the Buy American and Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products:

| Line Item Number | Country of Origin |
|------------------|-------------------|
| _____            | _____             |
| _____            | _____             |
| _____            | _____             |

(3) The following end products are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

| Line Item Number | Country of Origin (If known) | Exceeds 55% Domestic Content (yes/no) |
|------------------|------------------------------|---------------------------------------|
| _____            | _____                        | _____                                 |
| _____            | _____                        | _____                                 |
| _____            | _____                        | _____                                 |

(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number \_\_\_\_\_

*[List as necessary]*

(End of provision)

## 252.225-7020 Trade Agreements Certificate.

(Nov 2014)

### TRADE AGREEMENTS CERTIFICATE-BASIC (NOV 2014)

(a) *Definitions.* "Designated country end product," "nondesignated country end product," "qualifying country end product," and "U.S.-made end product" as used in this provision have the meanings given in the Trade Agreements-Basic clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will consider only offers of end products that are U.S.-made, qualifying country, or designated country end products unless-

(i) There are no offers of such end products;

(ii) The offers of such end products are insufficient to fulfill the Government's requirements; or

(iii) A national interest waiver has been granted.

(c) *Certification and identification of country of origin.*

(1) For all line items subject to the Trade Agreements-Basic clause of this solicitation, the offeror certifies that each end product to be delivered under this contract, except those listed in paragraph (c)(2) of this provision, is a U.S.-made, qualifying country, or designated country end product.

(2) The following supplies are other nondesignated country end products:

|                    |  |                     |
|--------------------|--|---------------------|
| (Line Item Number) |  | (Country of Origin) |
|--------------------|--|---------------------|

|       |  |       |
|-------|--|-------|
| ===== |  | ===== |
| ===== |  | ===== |
| ===== |  | ===== |

(End of provision)

**252.225-7035 Buy American--Free Trade Agreements--Balance of Payments Program Certificate. (Feb 2024)****BUY AMERICAN-FREE TRADE AGREEMENTS-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)**

(a) *Definitions.* "Bahraini end product," "commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "foreign end product," "Moroccan end product," "Panamanian end product," "Peruvian end product," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7036, Buy American-Free Trade Agreements-Balance of Payments Program-Basic clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) For line items subject to the Buy American-Free Trade Agreements-Balance of Payments Program-Basic clause of this solicitation, will evaluate offers of qualifying country end products or Free Trade Agreement country end products other than Bahraini end products, Moroccan end products, Panamanian end products, or Peruvian end products without regard to the restrictions of the Buy American or the Balance of Payments Program.

(c) *Certifications and identification of country of origin.*

(1) For all line items subject to the Buy American-Free Trade Agreements-Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except the end products listed in paragraph (c)(2) of this provision, is a domestic end product;

(ii) Each domestic end product listed in paragraph (c)(3) of this provision contains a critical component or a critical item; and

(iii) Components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country.

(2) The Offeror shall identify all end products that are not domestic end products.

(i) The Offeror certifies that the following supplies are qualifying country (except Australian) end products:

\_\_\_\_\_(Line Item Number)                      \_\_\_\_\_(Country of Origin)

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products other than Bahraini end products, Moroccan end products, Panamanian end products, or Peruvian end products:

\_\_\_\_\_(Line Item Number)                      \_\_\_\_\_(Country of Origin)

(iii) The following supplies are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except those that are COTS items. If the percentage of the domestic content is unknown, select "no".

| Line Item Number | Country of Origin (If known) | Exceeds 55% Domestic Content (yes/no) |
|------------------|------------------------------|---------------------------------------|
| =====            | =====                        | =====                                 |
| =====            | =====                        | =====                                 |
| =====            | =====                        | =====                                 |

(3) The Offeror shall list the line item numbers of domestic end products that contain a critical component or a critical item (see section 25.105 of the Federal Acquisition Regulation).

Line Item Number: [List as necessary]

(End of provision)